

24AVCV00227 24AVCV00227

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C06%2F23%2F2026

Source SHA-256: ee73a29999fde47176c7cc5a4bf35bc5c3ac134c0db62591c497c96befca77b2

Case Number: 24AVCV00227 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CHARLES COOKE, et al.;

Plaintiffs,

v.

MARYBELL DELGADILLO, and MARIA LOZANO.,

Defendants.

Case Number 24AVCV00227

[TENTATIVE]

ORDER AFTER HEARING

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This action arises from a motor vehicle accident that occurred on or about February 27, 2022. The accident involved a motorcycle and vehicle. Gina Jones Cooke (“Decedent”) was a passenger of the motorcycle and was fatally injured as a result of the accident. Jordan Kendell Sockwell, Marvell Kendell Sockwell and Miyah Lee (collectively “Claimants”) are the minor children of Decedent.

On February 27, 2024, Claimants, as issue and beneficiaries of Decedent’s estate, filed a Complaint against Defendants Marybell Delgadillo and Maria Lozano (“Defendants”) for personal injury, property damage, and wrongful death.

On February 6, and February 9, 2026, respectively, Petitioner Levell Sockwell, Sr. and Petitioner Michael Lee (collectively, “Petitioners”) filed petitions to approve the compromise of pending action on behalf of Jordan Kendell Sockwell, Marvell Kendell Sockwell, and Miyah Lee.

II. Analysis

Standard for Approving Minor’s Compromises – Court approval is required for all settlements of a minor’s claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.)

“[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor’s best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor’s injuries, care and treatment.” (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has “any bearing upon the reasonableness” of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952(a).)

An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also *Super. Ct. L.A. County, Local Rules*, rules 4.115-4.118.)

The petitions show that Minor Claimants Jordan Kendell Sockwell, Marvell Kendell Sockwell, and Miyah Lee settled with Defendants for total amounts of \$4,545.46 each. With respect to each Claimant, \$0 will be used to pay medical expenses, \$1,136.36 will be used to pay attorney’s fees, and \$20.65 will be used to pay non-medical expenses, leaving a balance of \$3,388.45 each. Petitioners propose the net proceeds be paid or delivered to Petitioners, the fathers of minor Claimants, without bond, to be held in a trust pursuant to Probate Code sections 3401 and 3402.

The Court finds the settlements are fair and reasonable. The Court also finds the requested attorney’s fees, which constitute 25% of the gross settlement amount from each minor claimant, are reasonable.

III. Conclusion

The petitions to approve compromise of pending action on behalf of minor claimants Jordan Kendell Sockwell, Marvell Kendell Sockwell, and Miyah Lee are GRANTED.